

BEFORE THE IOWA BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF:	)	Case No. 099-013
	)	
CRAIG S. HOLT, Ph.D.	)	COMBINED STATEMENT OF
	)	CHARGES AND
License No. 301-00702	)	INFORMAL SETTLEMENT
	)	AGREEMENT
Respondent.	)	

COMES NOW the Iowa Board of Psychology Examiners (Board) and Craig S. Holt, Ph.D. (Respondent) and pursuant to Iowa Code sections 17A.10(2) and 272C.3(4) enter into the following statement of charges and informal settlement agreement.

STATEMENT OF CHARGES

The Iowa Board of Psychology Examiners has jurisdiction over this matter pursuant to Iowa Code chapters 17A, 154B, and 272C (1997) (1999).

Licenses issued by the Board are subject to the laws of the State of Iowa and to the administrative rules of the Board.

Respondent Craig S. Holt, Ph.D., was at all times during the following events licensed to practice psychology in the State of Iowa. Respondent was issued license number 301-00702 to practice psychology in the State of Iowa on May 21, 1993, as recorded in the permanent records in the office of the Board, and his license is current until June 30, 2000.

Respondent's last known Iowa address was 1601 Red Oak Drive, Coralville, Iowa 52241. Respondent has relocated and is now residing in Texas.

COUNT I

Respondent is charged with violating Iowa Code section 272C.10(3) and 645 Iowa

Administrative Code sections 240.212(1)(c), 240.212(7)(f), 240.212(14) and sections 1.14, 4.05, and 4.07 of the *Ethical Principles of Psychologists and Code of Conduct of the American Psychological Association (Code of Conduct)*, incorporated by reference in 645 Iowa Administrative Code section 240.212(14), by willfully engaging in unethical conduct or conduct harmful or detrimental to the public, by engaging in a romantic and sexual relationship with a client or a former client, and by failing to comply with sections 1.14, 1.17, 4.05, and 4.07 of the *Code of Conduct* when he engaged in a sexual relationship with a client or former client, Patient #1.

COUNT II

Respondent is charged with violating Iowa Code section 272C.3(2) and 645 Iowa Administrative Code section 240.212(14) and sections 5.02 and 5.05 of the *Ethical Principles of Psychologists and Code of Conduct of the American Psychological Association (Code of Conduct)*, incorporated by reference in 645 Iowa Administrative Code section 240.212(14), by betrayal of a professional confidence, and by failing to comply with sections 5.02 and 5.05 of the *Code of Conduct* by failing to maintain patient confidentiality and making inappropriate disclosures of confidential patient information when he discussed other patients cases with a client or former client, Patient #1.

COUNT III

Respondent is charged with violating Iowa Code section 272C.3(2) and 645 Iowa Administrative Code section 240.212 and sections 1.23, 1.24, and 5.04 of the *Ethical Principles of Psychologists and Code of Conduct of the American Psychological Association (Code of Conduct)*, incorporated by reference in 645 Iowa Administrative Code section 240.212(14), by

betrayal of a professional confidence, and by failing to comply with sections 1.23, 1.24 and 5.04 of the *Code of Conduct* when he failed to appropriately document his professional work with patients and to maintain appropriate records in accordance with law and in a manner that permits compliance with the *Code of Conduct*.

CIRCUMSTANCES

1. Patient #1, an adult resident of Johnson County, Iowa was treated by the Respondent from approximately March 25, 1997 through at least July 31, 1997.
2. While treating Patient #1 and while engaged in Patient #1's final formal therapy session in his office, Respondent hugged Patient #1 and expressed an interest in a personal relationship with her.
3. Respondent did contact Patient #1 and he engaged in a romantic and sexual relationship with her. Respondent's sexual relations with Patient #1 included hugging and kissing, and sexual intercourse. The romantic and sexual relationship between Respondent and Patient #1 lasted for more than one year and occurred within two years after cessation of Respondent's treatment of Patient #1.
4. During Respondent's relationship with Patient #1, he discussed other patients' cases with Patient #1, including disclosing the name of at least one patient he discussed with her.
5. Respondent did not maintain notes of his therapy sessions with Patient #1 in her medical files, and notes relating to these therapy sessions were not placed in Patient #1's medical chart until nearly two years after Patient #1's final formal therapy session with Respondent. Respondent admitted that he had also failed to place information regarding therapy sessions with other patients in their medical charts and that there was a general lack of documentation on his

part.

6. Respondent has engaged in conduct providing the Board with jurisdiction to take disciplinary action.

7. There is probable cause to initiate a disciplinary action based upon alleged violations of the Board's ethical and other standards governing the practice of psychology in Iowa.

8. Accordingly, pursuant to applicable Iowa statutes and the Administrative Code rules, the Board is authorized to impose discipline against the Respondent.

INFORMAL SETTLEMENT AGREEMENT

9. The Board has jurisdiction over the parties and the subject matter.

10. By executing this informal settlement agreement, the Respondent expressly waives the right to notice and hearing on the charges.

11. Respondent is freely and voluntarily entering into this agreement and he agrees that the State's counsel may present this agreement to the Board.

12. This Statement of charges and Informal Settlement Agreement is subject to approval of the Board. If the Board fails to approve this Statement of Charges and Informal Settlement Agreement, it shall have no force or effect to either party.

13. The Board's approval of the Statement of Charges and Informal Settlement Agreement shall constitute the resolution of a contested case proceeding and shall be a FINAL ORDER of the Board.

14. Without making any admission as to the current allegations, the Respondent does not contest the allegations of the current charges.

15. The Respondent agrees to voluntarily surrender his license to practice psychology in the state of Iowa and also agrees that, pursuant to Iowa Code section 154B.8, a voluntary surrender must be accompanied by written statement of intention and when accepted by the director of public health, the Respondent agrees that the voluntary surrender shall have the same force and effect as an order of revocation issued by the Board.

16. The Respondent hereby agrees not to engage in the practice of psychology in the state of Iowa.

17. The Respondent agrees that should he ever seek reinstatement of his license to practice psychology such application for reinstatement shall be subject to the provisions of 645 Iowa Administrative Code § 11.31. In any application for reinstatement, the Respondent shall be required to submit evidence that demonstrates to the Board's satisfaction that the basis for the revocation and surrender of Respondent's license no longer exists and that it will be in the public interest for the license to be reinstated. The Respondent shall bear the burden of proof of establishing these facts.

18. This Statement of Charges and Informal Settlement Agreement are public records available for inspection and copying in accordance with the requirements of Iowa Code Chapter 22 and shall become a part of the permanent record of Respondent.



Craig S. Holt, Ph.D.
Respondent

The statement of charges and informal settlement agreement is approved by the Board on
this 3 day of December, 1999.

Scott M. Shafer, Ph.D.
Dr. Scott Shafer, Chair
Iowa Board of Psychology Examiners

Dr. Stephen C. Gleason
Director
Iowa Department of Public Health
Lucas State Office Building
Des Moines, Iowa 50319

Dear Mr. Gleason:

You are hereby notified that in accordance with the provisions of Iowa Code section 154B.8, this letter shall constitute my written statement of intention to voluntarily surrender the enclosed license to practice psychology in the state of Iowa. You are further notified that I fully understand that upon your acceptance of this voluntary surrender of my license, such acceptance shall have the same force and effect as an order of revocation.

You are further notified that I hereby affirm my decision not to engage in the practice of psychology in the state of Iowa and I hereby absolve and release the Iowa Department of Public Health and the Iowa Board of Psychology Examiners from any further right, claim, or title to the certificate of license and to any of the rights, privileges and honors pertaining thereto.

This written statement is my intention to voluntarily surrender my psychology license is being signed by me on this 19th day of November, 1999, as my own voluntary act and deed.



Craig S. Holt, Ph.D.
Respondent



Leon F. Spies
Attorney for Respondent



Witness
Patricia L. Thoene

On December 1, 1999, Dr. Craig S. Holt acknowledged by telephone that his original signature appears above.